

§ 435. Procedure; adjournment; confidentiality of requests. (a)

Hearings are conducted by the court without a jury. The court may adjourn the hearing to enable it to make inquiry into the surroundings, conditions and capacities of the child, into the financial abilities and responsibilities of both parents and for other proper cause. If the court so adjourns the hearing, it may require the respondent to give an undertaking to appear or in default thereof may commit him until the hearing resumes.

(b) Hearings are conducted without a jury. The support magistrate may adjourn the hearing in order to make inquiry into the surroundings, conditions and capacities of the child and into the financial abilities and responsibilities of both parents and for other proper cause including a referral of issues required to be determined by a judge. If the support magistrate so adjourns the hearing, the support magistrate shall make a temporary order of support, pending a final determination, and may require the respondent to give an undertaking to appear or in default thereof may, subject to the provisions in section four hundred thirty-nine of this act and confirmation by a judge, commit him or her until the hearing resumes. The support magistrate shall enter an order of support on default if the respondent fails to answer or appear after having been properly served.

(c) Reports prepared by the probation service for use by the court at any time prior to the making of an order of disposition shall be deemed confidential information furnished to the court which the court in a proper case may, in its discretion, withhold from or disclose in whole or in part to the support magistrate, child's attorney, counsel, party in interest, or other appropriate person. Such reports may not be made available to the court prior to a determination that the respondent is liable under this article for the support of the petitioner.